

23STLC06080 23STLC06080

County: los-angeles

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Case Number: 23STLC06080 Hearing Date: July 22, 2026 Dept: 26

TENTATIVE RULING:

Defendant Ashraf Mohammad Raoufi's

Motion to Set Aside Judgment Entered on February 19, 2026 is denied.

Analysis:

On September 19, 2023, Plaintiff Jim &

Stephanie Enterprises, Inc. dba Empire Plumbing Heating & Air Conditioning ("Plaintiff")

filed the instant action against Defendant Ashraf Mohammad Raoufi ("Defendant").

Defendant filed an Answer on February 13, 2024; at the time Defendant was represented by counsel. On February 4, 2025, Defendant filed a Substitution of Attorney changing to self-represented status.

Trial in this matter initially

came for hearing on March 18, 2025, at which time the Court ordered Plaintiff to file a declaration showing its attempt to serve and call the number on the Substitution of Attorney five court days prior to trial. (Minute Order, 03/18/26.) Trial was continued to May 29, 2025. (Ibid.) Plaintiff's counsel filed the declaration as ordered on May 21, 2025.

On May 29, 2025, the matter came

for trial with no appearance by Defendant. (Minute Order, 05/29/25.) The Court took Plaintiff's evidence and found in favor of Plaintiff and against Defendant in the amount of \$14,475.00. (Ibid.) Following multiple rejected proposed judgments, the Court entered judgment on February 19, 2026. (Judgment, 02/19/26.)

On June 2, 2026, Defendant filed the instant Motion to Set Aside Judgment Entered on February 19, 2026 . Plaintiff filed an opposition on July 9, 2026, and Defendant replied on July 15, 2026.

Discussion

Defendant moves for relief from the judgment entered on February 19, 2026 pursuant to Code of Civil Procedure section 473, subdivision (b). Under this statute, the Motion must be sought within a reasonable time, no more than six months after entry of the order from which relief is sought, and must be accompanied by an affidavit of fault attesting to the moving party's mistake, inadvertence, surprise or excusable neglect. (Code Civ. Proc., § 473, subd. (b); *English v. IKON Business Solutions* (2001) 94 Cal.App.4th 130, 143.)

The Motion is supported by a declaration in which Defendant attests that he listed the wrong address on the Substitution of Attorney form filed on February 4, 2025. (Motion, Raoufi Decl., ¶¶4-5 and Exh. A.) Defendant declares that as a result of this mistake, all the court filings were directed to "2141 Las Pasitas Court, Unit C, Livermore, California 94551" instead of the correct street name "Los Positas." (Ibid.) The incorrect address was an old office that Defendant's company used from approximately 2018-2019. (Id. at ¶5 and Exh. B.) Due to the papers being sent to this stale address, Defendant declares that he was unaware of the upcoming trial date. (Id. at ¶9.) Finally, Defendant declares that Defendant first learned of this action on May 26, 2026, when the company's old office manager gave the papers to Defendant's brother-in-law. (Id. at ¶10.)

In opposition, Plaintiff disputes that this clerical error can be considered excusable, and that Defendant lacked notice. Regarding the second argument, Plaintiff's counsel submits a declaration stating that he and Defendant spoke on May 21, 2025 for ten minutes regarding the trial, as ordered by the Court. (Opp., Ghaboosi Decl., ¶¶12-13.) This conversation is further corroborated by phone records from Plaintiff's counsel's office. (Id. at ¶¶14-5 and Exh. 2.) According to Plaintiff's counsel, they discussed the error in the address Defendant listed, but Defendant declined to provide the correct address. (Id. at ¶13.)

Defendant's reply does not sufficiently address the

phone conversation between himself and Plaintiff's counsel. It characterizes the conversation as occurring "seven months before trial documents were finalized and roughly ten months before entry of judgment." (Reply, p. 1:27-28.) This ignores the fact that trial was held little more than a week after the conversation, on May 29, 2025. It is not credible that Defendant inadvertently ignored a conversation about such a pressing trial date. Nor does Defendant submit any further declaration in support of the reply to dispute Plaintiff's account of the conversation. The Court finds the declaration of Plaintiff's counsel credibly recounts a conversation that gave Defendant notice of the trial date, such that Defendant was aware of the need to appear on May 29, 2025. Defendant's failure to appear for trial, therefore, cannot be attributed to mistake, inadvertance, surprise, or excusable neglect, as argued in the Motion.

Nor has Defendant shown that the timing of the instant Motion is reasonable. The evidence is that Defendant was aware of the trial date and the error in his address on file with the Court, but made no effort to check in regarding the proceedings or correct his address. It is not reasonable that Defendant willfully ignored the proceedings and then waited until June 2026 to seek relief. Defendant's failure to appear, therefore, is not subject to relief pursuant to Code of Civil Procedure section 473, subdivision (b).

Conclusion

Defendant Ashraf Mohammad Raoufi's

Motion to Set Aside Judgment Entered on February 19, 2026 is denied.

Plaintiff to give notice.